TERMS AND CONDITIONS FOR RESTAURANTS AND VENDORS JOINING ZYADA

ZYADA DIGITAL SOLUTIONS - F.Z.C.

These Terms govern the commercial relationship between Zyada and the Vendor regarding product listings, order fulfilment, commission, and settlement of amounts due, in accordance with the applicable laws of the United Arab Emirates. The establishment and authorised representative details registered in the Vendor account, together with the uploaded documents, form part of the identification of the contracting party, and the Vendor's registered business name and trade licence number are displayed below, without requiring a handwritten signature.

FIRST PARTY

Zyada Digital Solutions - F.Z.C., a free zone company with limited liability, licensed by the Ajman Free Zones Authority under Licence and Registration No. 57982, with registered address at C.B. 1309649, Building 1C, Ajman Free Zone, Ajman, United Arab Emirates, represented by its Manager, Mohamed Mosaad Aly Ahmed, hereinafter referred to as “Zyada”.

SECOND PARTY

Registered Business Name: {{vendor_legal_name}}

Trade License Number: {{trade_license_number}}

The Vendor is the establishment identified in the Vendor account on the application in accordance with its trade licence and registration documents and is represented by the account holder legally authorised to act on its behalf. Any person accepting these Terms confirms the accuracy of the information provided, confirms that he/she has the authority to bind the establishment, and undertakes to update the account information whenever it changes.

1. PURPOSE AND BACKGROUND

The First Party operates the Zyada digital platform, which aims to help companies and commercial establishments sell eligible products, including discounted products, surplus inventory, excess stock, end-of-season products, or other products offered through the application, thereby helping establishments reach customers and reduce unsold products or inventory. The Second Party wishes to offer selected products through Zyada in accordance with these Terms.

2. SCOPE OF PARTNERSHIP

The Second Party shall provide the agreed products, quantities, prices, pickup information from the Vendor’s location, availability periods, and any other information required by the First Party for listing on Zyada. The First Party shall provide the technology platform, product-listing functionality, the customer-facing marketplace, and reasonable promotional support for transactions conducted through Zyada. The commercial relationship is non-exclusive unless the Parties expressly agree otherwise in a separate written agreement.

3. COMMISSION AND TAXES

Zyada shall be entitled to a commission of 25% of the value of products actually sold in completed orders after Vendor discounts, excluding VAT on the products, cancelled orders, and refunded amounts. No commission shall be due on products provided free of charge. The commission shall be recalculated in the event of a partial or full refund.

The 25% commission is exclusive of VAT applicable to Zyada's service. VAT at the legally applicable rate shall be added only to the commission amount, where due and where Zyada is registered or required to register under applicable law, and shall be shown in the tax invoice and settlement statement. It shall not be added to the entire order value as tax on Zyada's commission. Each Party shall issue such invoices as required by law.

No additional payment or transfer fees shall be deducted from the Vendor unless they have been disclosed and electronically accepted before being applied. The commission rate may only be changed with the documented agreement of both Parties.

4. WEEKLY SETTLEMENT THROUGH TELR

Zyada shall settle the Vendor's net amounts due on a weekly basis for completed and collected orders and shall arrange the transfer through Telr to the Vendor's approved bank account recorded in the registration file. The weekly settlement day shall be displayed to the Vendor in the commercial summary before acceptance and retained in the acceptance record. If the settlement day falls on a banking holiday, settlement shall be made on the next business day. The actual credit date may vary according to bank processing times; Zyada shall follow up on any delay and inform the Vendor of the known reason.

The Vendor shall have access to a weekly statement showing the orders, their values, commission, applicable tax, refunds, any agreed deductions, the net amount transferred, and any remaining balance. No fees or minimum payout thresholds shall be imposed unless agreed in writing.

Transfers shall be made in UAE Dirhams to the Vendor's verified account. Bank account details and the bank letter shall be kept securely in the registration file and shall not be included in the body of these Terms. Any request to change the beneficiary account must be verified before any transfer is made to the new account.

An amount specifically related to a dispute, refund, chargeback, or legal order may be temporarily withheld to the extent necessary, with the Vendor informed of the reason where permitted by law, while undisputed amounts shall be paid. Such withholding does not cancel the Vendor's entitlement to amounts proven to be due. The Vendor may dispute a statement within 14 days of it being made available, without waiving any rights that cannot legally be waived.

5. PRODUCT SAFETY AND LICENCES

The Vendor shall maintain valid trade licences, activity and branch permits, and approvals from the competent food authority. The Vendor shall offer only products that may legally be traded and that are fit for consumption or use when collected by the customer from the Vendor's location. Spoiled, expired, recalled, or prohibited food or products must not be offered, even free of charge.

The Vendor is responsible for storage, temperatures, packaging, ingredient and allergen information, expiry information, description, pricing, and quantities. The Vendor shall immediately stop offering any unsafe product, notify Zyada and the competent authorities where required, and cooperate with any withdrawal or recall. A discount or description of a product as surplus does not make an unsafe product eligible for sale.

6. ORDER FULFILMENT AND PROOF OF COLLECTION

Orders shall be collected by the customer only from the Vendor location specified in the order. Before order confirmation, the Vendor shall clearly provide the pickup location address, operating/pickup times, and instructions. The Vendor shall prepare the order as described and by the agreed time, promptly update quantities, and report any inability to fulfil an order.

The Vendor shall retain dated and customer-confirmed proof that the customer collected the order from the Vendor's location, such as a signature or a documented electronic confirmation approved within the application, link it to the order number, and provide it when required for handling a complaint or dispute. Zyada shall issue payment confirmation in accordance with the application's published and active process. The Vendor shall not be required to collect or store customers' card data.

7. CANCELLATION, REFUNDS AND DISPUTES

The cancellation and refund policy published in the application shall apply as appropriate to the nature of the products, without limiting statutory consumer rights in cases of non-fulfilment, defect, or non-conformity. This Agreement does not require the return of unsafe food as a condition for establishing entitlement to a refund, nor does it impose a short period that extinguishes a statutory right.

Zyada shall process refunds through the payment provider to the original payment method in accordance with the provider's and bank's rules. The Vendor shall cooperate with verification and provide fulfilment evidence. Each Party shall bear the documented amounts and losses resulting from its own error or breach, and the commission shall be adjusted when the sale value is refunded. The Vendor shall not automatically bear every chargeback regardless of cause, and the same amount shall not be deducted twice.

8. TERM AND RENEWAL

This Agreement shall remain in force for one (1) year from the date the Vendor's electronic acceptance is recorded and shall automatically renew for successive one-year periods unless either Party gives written notice of non-renewal or termination at least thirty (30) days in advance, subject to the termination provisions below.

9. TERMINATION AND SUSPENSION

Either Party may terminate this Agreement by written notice if the other Party materially breaches this Agreement and fails to remedy the breach within a reasonable period after receiving written notice. The First Party may immediately suspend any listing or the Second Party's access to Zyada where reasonably necessary to address unlawful activity, serious customer complaints, repeated cancellations or delays, fraud, payment issues, counterfeit-product concerns, product-quality concerns, reputational risk, or any material breach. Termination shall not affect accrued payment obligations, confidentiality obligations, intellectual property rights, or any provisions intended to survive termination.

10. REPUTATION AND PLATFORM STANDARDS

The First Party may suspend, restrict, or remove listings or accounts where there are repeated customer complaints, misleading information, unlawful practices, poor order fulfilment, counterfeit products, or any conduct that could reasonably harm customer trust or Zyada's reputation. The First Party may establish reasonable operational and content standards for listings on Zyada, provided such standards are applied in a commercially reasonable manner.

11. INTELLECTUAL PROPERTY AND MARKETING RIGHTS

The Zyada application name, logo, software, interface, technology, trademarks, platform content, and all related intellectual property rights shall remain the exclusive property of the First Party or its licensors. During the term of this Agreement, the Second Party grants the First Party a non-exclusive, royalty-free right to use the Second Party's name, business name, trademark, logo, product information, images, and any other materials supplied or approved by the Second Party for the purpose of listing, operating, advertising, and promoting the Second Party on Zyada and through related marketing channels. The Second Party confirms that it has the right to provide such materials and that their use in accordance with this Agreement will not knowingly infringe third-party rights.

12. CONFIDENTIALITY AND DATA PROTECTION

Each Party shall process personal data only to the extent necessary to perform this Agreement, carry out verification, and meet legal obligations, using appropriate access and security controls and a privacy policy describing purposes, recipients, retention, and rights. Necessary verification documents may be securely shared with the payment provider, banks, verification providers, and authorities on a valid legal basis. Such documents shall not be used or sold for marketing purposes.

The Vendor shall not use Zyada customer data for independent marketing without the required legal basis and consent. Each Party shall notify the other without undue delay of a material data incident and cooperate in remediation and required notifications. Documents shall be retained only for the period necessary or legally required and shall then be securely deleted or destroyed.

13. NON-CIRCUMVENTION OF PLATFORM TRANSACTIONS

The Second Party shall not intentionally direct, encourage, or facilitate a customer introduced through Zyada to complete the same transaction outside Zyada for the purpose of avoiding the applicable commission or platform fees. This restriction does not prevent the Second Party from conducting its ordinary business with customers acquired independently outside Zyada, provided that it does not misuse customer information obtained through Zyada or intentionally circumvent the platform in relation to transactions generated through Zyada.

14. LIABILITY

Zyada is an intermediary platform for product listings, order coordination, and collection through the payment provider, while the Vendor is responsible for its products and performance of its obligations. Each Party shall be responsible for liability arising from its own fault or breach in accordance with applicable law. This Agreement does not exclude Zyada's liability for its obligations, eliminate consumer rights, or exclude any liability that cannot legally be excluded.

15. THIRD-PARTY CLAIMS

The Party responsible for a breach shall indemnify the other Party for direct and proven losses and third-party claims arising from that breach or violation of law, within the responsible Party's liability and to the extent permitted by law. The affected Party shall notify the other Party of the claim and allow it to cooperate in the defence, and shall not enter into a settlement that imposes an obligation on the other Party without its consent, which shall not be unreasonably withheld.

16. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of the United Arab Emirates, as applicable in the Emirate of Dubai. Any dispute arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the competent courts of Dubai, United Arab Emirates, unless the Parties agree otherwise in writing.

17. GENERAL PROVISIONS

This Agreement constitutes the entire agreement between the Parties concerning its subject matter and supersedes any prior discussions or understandings relating to the same subject. Any amendment or change must be in writing and accepted by both Parties. If any provision is found invalid or unenforceable, the remaining provisions shall continue in force to the extent permitted by law. Neither Party may assign or transfer this Agreement to a third party without the other Party's prior written consent, except in connection with a merger, restructuring, or transfer of all or substantially all relevant assets, provided that this does not materially prejudice the other Party. Electronic signatures and electronically exchanged copies of this Agreement may be treated as originals to the extent permitted by applicable law.

18. MANDATORY REGISTRATION AND VERIFICATION DOCUMENTS

As a contractual condition for registration and activation on the Zyada application, the Vendor shall upload clear and valid copies of the following documents through the secure process designated within the application. The authorised representative confirms their accuracy and his/her authority to represent the establishment. The documents shall be used to verify the Vendor's identity, eligibility, and settlement information.

- Trade licence, including all pages, together with any required activity and branch permits.
- Emirates ID and passport of the owner or authorised representative, and of shareholders and ultimate beneficial owners as required for verification, together with an authorisation document or evidence of signing authority where necessary.
- A stamped bank letter evidencing the beneficiary account and stating the bank name, account holder name, account number, IBAN, and branch. These details shall remain in the secure verification file and outside the body of this Agreement.
- VAT Registration Certificate if the establishment is VAT registered, and signing-authority or ultimate-beneficial-owner information where required for verification under applicable law.

Uploading the trade licence, Emirates ID, passport, and bank letter is mandatory before the Vendor is activated to accept paid orders. Zyada shall review the documents and request correction of any deficiencies. The Vendor shall renew them before expiry and immediately notify Zyada of any material change. Zyada may suspend acceptance of new orders if documents expire or are inaccurate until corrected, without affecting existing amounts due or any legal obligation.

19. NOTICES AND INDEPENDENCE OF THE PARTIES

Notices shall be sent to the email address and communication details registered in the Vendor account and through Zyada's official communication channels displayed within the application, with evidence of sending retained. Each Party shall notify the other of any change. This Agreement does not create a partnership, employment relationship, registered commercial agency, or exclusivity between the Parties, and neither Party has authority to bind the other outside the scope expressly authorised herein. Each Party shall bear its own business expenses except where expressly agreed otherwise in writing.

20. ELECTRONIC ACCEPTANCE AND RECORD OF TERMS

These Terms and the commercial summary shall be displayed to the Vendor before activation. Acceptance shall be given through a clear affirmative action by the authorised representative within the account by selecting acceptance and pressing the "Agree and Continue" button. Merely opening, reading, or closing the Terms page shall not constitute acceptance. These Terms shall become effective between the Parties when the electronic acceptance is recorded, to the extent permitted by law.

The acceptance record shall be linked to the identity of the Vendor account, establishment and authorised representative, the time of acceptance, the version number of the Terms, and the accepted commercial summary. Zyada shall allow the Vendor to access and save the accepted version. New electronic acceptance shall be obtained for material amendments before they are applied to the Vendor, without retrospective effect on prior amounts due or reduction of statutory rights.

ACCEPTANCE TEXT DISPLAYED TO THE VENDOR

I confirm that I am authorised to represent the establishment registered under this account, that I have reviewed and agree to the Vendor Joining Terms and Conditions and the commercial summary, and that the establishment information and documents provided are accurate.